

## TENTATIVE RULINGS

### DEPT CX102

Judge Layne H. Melzer

**Court Reporters:** Official court reporters (i.e., court reporters employed by the Court) are **NOT** typically provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it will be the party's responsibility to provide a court reporter. Parties must comply with the court's policy on the use of privately retained court reporters which can be found on the court's website at [Court Reporter Services | Superior Court of California | County of Orange](#).

**Tentative rulings:** The court endeavors to post tentative rulings on the court's website in the morning, prior to the afternoon hearing. However, ongoing proceedings such as jury trials may prevent posting by that time. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted. The court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

**Submitting on tentative rulings:** If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5302. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal. R. Ct. 3.1312.

**Non-appearances:** If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4<sup>th</sup> 436, 442, fn. 1.)

**APPEARANCES:** Department CX102 conducts non-evidentiary proceedings, such as law and motion, remotely, by Zoom videoconference pursuant to CCP §367.75, California Rule of Court (CRC) 3.672 and Orange County Local Rule (OCLR) 375. All counsel and self-represented parties appearing for such hearings must check-in online through the Court's civil video appearance website at [Civil Remote Hearings | Superior Court of California | County of Orange](#) prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available on the website. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" ("Appearance Procedures") and "Guidelines for Remote Appearances" ("Guidelines") contained on the Court's website will be strictly enforced. Parties preferring to appear in-person for law and motion hearings may do so pursuant to CCP §367.75 and OCLR 375.

**PUBLIC ACCESS:** The courtroom remains open for all evidentiary and non-evidentiary proceedings.

**No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.**

**TENTATIVE RULINGS****9/03/2026****02:00 PM**

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| <b>100</b> | <b>Lopez vs. Fairmont Schools, Inc., a California corporation</b><br><br><b>2022-01269531</b>        | <b>Final Accounting</b><br><br>Plaintiff Marcus Lopez’s Final Accounting hearing is <b>CONTINUED to October 29, at 2:00 p.m. in Department CX102</b> to confirm that the amount of the uncashed funds after the check-cashing deadline have been delivered to the State Controller’s Office Unclaimed Property Fund in the names of the applicable payees, that the administrator’s work is complete, and that the Court’s file thus may be closed. All supporting papers must be filed at least sixteen (16) court days before the continued hearing date. If the settlement funds are not completely disbursed by the report deadline, Class Counsel must request a continuance. Failure to do so may result in the issuance of an Order to Show Cause re Monetary Sanctions.<br><br>Plaintiff is ordered to give notice of this ruling to Defendant.                                                                                                                                                                                                      |
| <b>101</b> | <b>Rojo vs. Farwest Insulation Contracting, a California corporation</b><br><br><b>2022-01259062</b> | <b>Final Accounting</b><br><br>The court finds all settlement distribution efforts are fully concluded. The administrator’s final report (ROA 301) is thus approved, and the court’s file is closed.<br><br>Plaintiff to give notice of the court’s ruling and file proof of service.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| <b>102</b> | <b>Fulfer vs. CareCar, Inc.</b><br><br><b>2022-01299427</b>                                          | <b>1.Motion to Be Relieved as Counsel of Record</b><br><br><b>2. Status Conference</b><br><br>Attorney Tamar G. Arminak of the law firm Arminak Law, APC’s motion to be relieved as counsel of record for Defendant Carecar, Inc. is <b>GRANTED</b> , effective upon the filing of the proof of service of the signed order upon the client. (Code Civ. Proc., § 284, subd. 2.)<br><br>Moving counsel shall lodge with the Court an updated proposed order that lists in ¶ 7 updated information on the next scheduled hearing.<br><br>The Court notes that a corporation may not represent itself in propria persona but must be represented by a licensed attorney. (See <i>Merco Construction Engineers, Inc. v. Mun. Ct.</i> (1978) 21 Cal.3d 724, 730 [corporation may not represent itself and must appear through a licensed attorney]; <i>CLD Construction, Inc. v. City of San Ramon</i> (2004) 120 Cal.App.4th 1141, 1150 [“court retains authority to dismiss an action if an unrepresented corporation does not obtain counsel within reasonable |

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|            |                                                                          | <p>time”].) Defendant Carecar, Inc. shall obtain counsel within a reasonable time.</p> <p>Moving counsel shall give notice of this ruling.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| <b>103</b> | <p><b>PIRIZ vs. CARECAR, INC.</b></p> <p><b>2022-01292639</b></p>        | <p><b>1. Motion to Be Relieved as Counsel of Record</b></p> <p><b>2. Status Conference</b></p> <p>Attorney Tamar G. Arminak of the law firm Arminak Law, APC’s motion to be relieved as counsel of record for Defendant Carecar, Inc. is <b>GRANTED</b>, effective upon the filing of the proof of service of the signed order upon the client. (Code Civ. Proc., § 284, subd. 2.)</p> <p>Moving counsel shall lodge with the Court an updated proposed order that lists in ¶ 7 updated information on the next scheduled hearing.</p> <p><b>An order to show cause is set for October 15, 2026 at 9:30AM. in Department CX102.</b> At the hearing, the Court will strike Defendant Carecar, Inc.’s answer for its failure to appear through counsel unless it (1) substitutes in new counsel before the hearing or (2) appears at the hearing and shows good cause otherwise. (See <i>Merco Construction Engineers, Inc. v. Mun. Ct.</i> (1978) 21 Cal.3d 724, 730 [corporation may not represent itself and must appear through a licensed attorney]; <i>CLD Construction, Inc. v. City of San Ramon</i> (2004) 120 Cal.App.4th 1141, 1145, 1150 [same, and “court retains authority to dismiss an action if an unrepresented corporation does not obtain counsel within reasonable time”].)</p> <p>Moving counsel shall give notice of this ruling.</p> |
| <b>104</b> | <p><b>Barrera vs. KWK Trucking, Inc.</b></p> <p><b>2023-01349709</b></p> | <p><b>1.Motion for Leave to File Amended Complaint</b></p> <p><b>2. Case Management Conference</b></p> <p>Plaintiff Luis Barrera’s Motion for Leave to File First Amended Complaint is <b>DENIED in part and GRANTED in part.</b> (Code Civ. Proc. [CCP], §§ 473, subd. (a)(1), 576; Cal. Rules of Court [CRC], rule 3.1324.)</p> <p><b>Legal Standards</b></p> <p><b>Procedural Requirements</b></p> <p>California Rules of Court (CRC), rule 3.1324(a) requires that a motion to amend include a copy of the proposed amendment or amended pleading; identify by page, paragraph, and line number any additions to and</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |

deletions from the prior pleading. Rule 3.1324(b) further requires a separate supporting declaration that specifies:

- (1) The effect of the amendment;
- (2) Why the amendment is necessary and proper;
- (3) When the facts giving rise to the amended allegations were discovered; and
- (4) The reasons why the request for amendment was not made earlier.

(CRC, rule 3.1324(b)(1)-(4).)

### **Merits**

“The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading . . . .” (Code Civ. Proc. [CCP], § 473, subd. (a)(1).) Further, “[a]ny judge, at any time before or after commencement of trial, in the furtherance of justice, . . . may allow the amendment of any pleading . . . .” (CCP § 576.)

“The trial court has wide discretion in allowing the amendment of any pleading, and as a matter of policy the ruling of the trial court in such matters will be upheld unless a manifest or gross abuse of discretion is shown.” (*Record v. Reason* (1999) 73 Cal.App.4th 472, 486, internal quotes, brackets, & citations omitted.)

“[C]ourts are bound to apply a policy of great liberality in permitting amendments to the complaint at any stage of the proceedings, up to and including trial,” so long as “no prejudice is shown to the adverse party.” (*Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 761 [internal quotes and citations omitted].) “The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified.” (*Howard v. County of San Diego* (2010) 184 Cal.App.4th 1422, 1428.)

“If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend; and, where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion.” (*Morgan v. Super. Ct.* (1959) 172 Cal.App.2d 527, 530.) Indeed, “judicial policy favors resolution of all disputed matters in the same lawsuit,” and “it is irrelevant that new legal theories are introduced as long as the proposed amendments ‘relate to the same general set of facts.’” (*Kittredge Sports Co. v. Super. Ct.* (1989) 213 Cal.App.3d 1045, 1047-1048, quoting *Hirsa v. Super. Ct.* (1981) 118 Cal.App.3d 486, 489.)

Leave to amend may be denied if the party seeking the amendment has been dilatory *and* the delay has prejudiced the opposing party. (*See Hirsa, supra*, 118 Cal.App.3d at p. 490.) Delay is most likely to result in prejudice warranting a denial of leave to amend “[w]here the trial date is set, the jury is about to be impaneled, counsel, the parties, the trial court, and the witnesses have blocked the time, and the only way to avoid

prejudice to the opposing party is to continue the trial date to allow further discovery.” (*Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 488.)

“However, even if a good amendment is proposed in proper form, unwarranted delay in present it may—of itself—be a valid reason for denial.” (*P&D Consultants, Inc. v. City of Carlsbad* (2010) 190 Cal.App.4th 1332, 1345, internal quotes omitted [affirming denial of leave to amend where movant offered no reason for 10-month delay in seeking leave to amend].)

Finally, although “the failure of a proposed amendment to state facts sufficient to constitute a cause or defense may support an order denying a motion to amend,” this rule is most appropriately applied “in cases in which the insufficiency of the proposed amendment is established by controlling precedent and where the insufficiency could not be cured by further appropriate amendment.” (*Cal. Casualty General Insurance Co. v. Super. Ct.* (1985) 173 Cal.App.3d 274, 280-281.) Thus, for example, where “[t]he proposed amendment would [be] futile because it [i]s barred by the statute of limitations,” “it is proper to deny leave to amend.” (*Foxborough v. Van Atta* (1994) 26 Cal.App.4th 217, 230-231; see also *Yee v. Mobilehome Park Rental Review Bd.* (1998) 62 Cal.App.4th 1409, 1429.) Otherwise, “the better course of action” is to grant leave to amend the complaint “and then let the parties test its legal sufficiency in other appropriate proceedings” like a demurrer. (*Atkinson*, 109 Cal.App.4th at p. 760, citing *Kittredge*, 123 Cal.App.3d at p. 1048.)

## Application

### Plaintiff Barrera’s PAGA Claim

The Court **DENIES in part** the instant motion **to the extent the proposed first amended complaint (FAC) seeks to add a PAGA claim by Plaintiff Barrera.**

First, the instant motion, as it applies to Barrera’s PAGA claim, fails to satisfy CRC rule 3.1324(b)(3) and (4). On the element of when facts giving rise to the amended allegations were discovered, counsel’s declaration acknowledges that notice of Barrera’s PAGA claim was given to the LWDA on 9/9/2023. (ROA #72 [Park Decl.], ¶ 7.) Therefore, facts giving rise to the amended allegations to assert a PAGA claim by Barrera were discovered before the original complaint was filed on 9/14/2023. Yet counsel does not explain why Barrera is only now seeking to actually amend the complaint to assert his PAGA claim in this action.

Indeed, as early as 2/14/2024, Plaintiff represented to this Court in a case management statement that:

On September 9, 2023, Plaintiff provided written notice to the LWDA and Defendant pursuant to Labor Code § 2698 et seq. (the Private Attorneys General Act of 2004 (“PAGA”). The sixty-five day notice period expired on or about November 13, 2023 and the

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|  | <p>LWDA did not take any action to investigate or prosecute this matter. Having exhausted the statutory time period to bring this action, Plaintiff intends to amend the Complaint to include a claim under PAGA.</p> <p>(ROA #18.) Yet counsel has not explained why Barrera waited over 2 years to seek leave to actually amend the complaint to assert Barrera’s PAGA claim.</p> <p>Second, Plaintiff Barrera’s PAGA claim is barred by the statute of limitations according to the face of the proposed FAC.</p> <p>The statute of limitations for a PAGA claim is one year. (Code of Civil Procedure [CCP], § 340(a).) “A statute of limitations begins to run when a cause of action has accrued, which is when all the elements of that cause of action have been satisfied.” (<i>Williams v. Alacrity Solutions Group, LLC</i> (2025) 110 Cal.App.5th 932, 942, internal quotes omitted, review granted, <i>Williams v. Alacrity Solutions Group</i> (Cal. 2025) 334 Ca. Rptr.3d 45.) “[A] PAGA action accrues when the Labor Code violation last occurred; as applied here, when a PAGA plaintiff is no longer employed by the violator-employer, the violation last occurred (and the cause of action accrues) on the PAGA plaintiff’s last day of employment.” (<i>Id.</i>)</p> <p>Labor Code section 2699.3 provides, in relevant part:</p> <p>(a)(2)(A) The agency shall notify the employer and the aggrieved employee or representative by certified mail that it does not intend to investigate the alleged violation within 60 calendar days of the postmark date of the notice received pursuant to paragraph (1). Upon receipt of that notice or if no notice is provided within 65 calendar days of the postmark date of the notice given pursuant to paragraph (1), the aggrieved employee may commence a civil action pursuant to Section 2699.</p> <p>...</p> <p>(C) Notwithstanding any other provision of law, a plaintiff may as a matter of right amend an existing complaint to add a cause of action arising under this part at any time within 60 days of the time periods specified in this part.</p> <p>...</p> <p>(e) The periods specified in this section are not counted as part of the time limited for the commencement of the civil action to recover penalties under this part.</p> <p>“Section 2699.3, subdivision (a) evinces the Legislature’s intent for workplace violations to be addressed expeditiously by setting a <i>tight timeline</i> for the LWDA to respond to the notice of alleged violations <i>and the plaintiff to thereafter file or amend a complaint</i>. The concomitant one-year statute of limitations emphasizes the Legislature’s desire for quick</p> |
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action on workplace violations.” (*Brown v. Ralphs Grocery Co.* (2018) 28 Cal.App.5th 824, 840, emphases added.)

Here, the FAC alleges that Barrera worked for Defendant from approximately March 2017 to April 2023 (FAC, ¶ 8); that Barrera gave notice to the LWDA on 9/9/2023 (*id.* at ¶ 106); and that the LWDA has not indicated it intends to investigate Barrera’s claims (*id.*).

As Barrera last worked for Defendant in April 2023, the statute of limitations on his PAGA claim expired one year later in April 2024. Although Barrera timely gave notice to the LWDA of his PAGA claim on 9/9/2023 before the expiration of the statute of limitations, that notice only tolled Barrera’s statute of limitations for 65 days from the date of notice to await the LWDA’s response. Thereafter, Barrera had another 60 days to file an amended complaint. Accounting for 65 days of tolling, the statute of limitations on Barrera’s PAGA claim expired in or around June 2024.

Yet Barrera did not file the instant motion to seek leave to file the FAC until roughly two years later on 6/10/2026. Importantly, notice to the LWDA does not mean the statute of limitations applicable to “the commencement of the civil action to recover [PAGA] penalties” no longer applies. (See, e.g., *Arce v. The Ensign Group, Inc.* (2023) 96 Cal.App.5th 622, 630 [explaining that “because a would-be PAGA plaintiff can only bring her claim to court 65 days after submitting a prefiling notice to the LWDA, the statute of limitations is tolled for 65 days from the time the notice is submitted”]; *LaCour v. Marshalls of Cal., LLC* (2023) 94 Cal.App.5th 1172, 1185 [“An alleged aggrieved employee cannot file a PAGA action until after the aggrieved employee exhausts PAGA remedies by filing a notice with the LWDA, and the statute of limitations is tolled up to 65 days to give the LWDA a chance to respond to the notice”]; *Brown, supra*, 28 Cal.App.5th at p. 839, internal citations omitted [“Section 2699.3 also allowed plaintiff to amend her existing complaint to add a PAGA cause of action within 60 days of that [65]-day period. The [65]-day and 60-day periods were in addition to the one-year statute of limitations.”].)

The relation-back doctrine does not save the claim. Under that doctrine, an amended complaint is deemed filed as of the date of the original complaint only if it “rest[s] on the same general set of facts,” “involve[s] the same injury,” and “refer[s] to the same instrumentality” as the original pleading. (*Brown, supra*, 28 Cal.App.5th at p. 841.) But the doctrine “cannot be used to frustrate the intent of the Legislature to require compliance with administrative procedures as a condition to filing an action,” and “the rule of relation back does not operate to assign the performance of a condition precedent to a date prior to its actual occurrence.” (*Esparza v. Safeway, Inc.* (2019) 36 Cal.App.5th 42, 60.) A PAGA plaintiff may not sue until both the LWDA notice is given and the 65-day review period has run. (Lab. Code, § 2699.3, subd. (a)(2)(A).) Accordingly, “an untimely PAGA claim may relate back to an earlier complaint only if the complaint was preceded by timely notice to the LWDA” and the earlier complaint could itself have asserted the PAGA claim. (*Esparza, supra*, 36 Cal.App.5th at pp. 60-62; *Brown, supra*, 28 Cal.App.5th at pp. 841-842 [remanding for

consideration whether later-added PAGA claims relate back "solely as to the adequately noticed and alleged" original PAGA claim].)

Barrera's original complaint, filed September 14, 2023, asserted no PAGA cause of action; it pleaded only individual and class wage claims and a claim for unfair competition. And because Barrera filed that complaint just five days after serving his LWDA notice — before the 65-day review period had run — he could not lawfully have commenced any PAGA action as of that date. Relating a PAGA claim back to September 14, 2023 would therefore "assign the performance of a condition precedent to a date prior to its actual occurrence," which the relation-back doctrine does not permit. (*Esparza, supra*, 36 Cal.App.5th at p. 60.) *Esparza* is directly on point: it refused to relate an untimely PAGA claim back to an earlier "complaint raising no PAGA claim and alleging no prefiling notice to the LWDA," because doing so would improperly use relation back "to frustrate the intent of the Legislature to require compliance with administrative procedures as a condition to filing an action." (*Id.* at 62-63.)

*Hutcheson v. Superior Court* (2022) 74 Cal.App.5th 932 does not compel a different result. *Hutcheson* held that relation back "may apply" to permit the substitution of one aggrieved employee for another as the named PAGA plaintiff, where the *original complaint already asserted a PAGA claim* supported by timely, adequate LWDA notice, and the substitute plaintiff was an aggrieved employee with standing when that complaint was filed. (*Id.* at 936, 940-942.) The doctrine there related the amended pleading to an anchor PAGA claim that had itself satisfied PAGA's exhaustion prerequisites and was validly pending. (*Id.* at p. 941.) Here there is no anchor: Barrera's original complaint pleaded no PAGA claim, and it could not have asserted one when filed. Nor is *Hutcheson's* equitable concern present — that barring relation back would let an employer "escape" penalty exposure it already faced under an existing PAGA complaint (*id.* at 944) — because Defendant never faced PAGA penalty exposure under Barrera's original damages complaint. Permitting relation back here would not preserve existing exposure but create new exposure years after the limitations period closed.

Nor should the relation back doctrine be used to frustrate the Legislature's "intent for workplace violations to be addressed expeditiously by setting a *tight timeline* for the LWDA to respond to the notice of alleged violations *and the plaintiff to thereafter file or amend a complaint*" as reflected in Labor Code sections 2699.3, subdivisions (a)(2)(A), (a)(2)(C), and (e). (*Brown, supra*, 28 Cal.App.5th 824, 840, *emphases added*.) Notably, section 2699.3(a) authorizes the plaintiff to "commence" the PAGA action "only after" expiration of the 65-day notice period. This legislative directive that a PAGA action "shall commence only after" exhaustion reflects an intent that such an action can have no beginning date earlier than the date of filing upon expiration of the notice period. Unfortunately, the PAGA action Barrera now seeks to "commence" would be time barred—or more colloquially—it would be "over before it started."

Because Barrera's proposed PAGA cause of action is time-barred on the face of the proposed first amended complaint, and relation back does not



apply, the amendment is futile as to that claim. (*Foxborough, supra*, 26 Cal.App.4th at pp. 230-231; *California Casualty, supra*, 173 Cal.App.3d at pp. 280-281.) **Leave to amend to add Plaintiff Barrera's PAGA claim is DENIED.**

Moreover, as discussed above, Plaintiff's counsel has offered no explanation for Barrera's delay in seeking to assert his PAGA claim in this action, which fails to comply with CRC rule 3.1324(b)(4). As noted above, unwarranted delay and failure to explain delay are also appropriate reasons to justify a denial of leave to amend. (*P&D Consultants, supra*, 190 Cal.App.4th at p. 1345.)

**Claims of the 4 New Proposed Named Plaintiffs**

Defendant's opposition to the instant motion also raises the following arguments as to why the Court should deny Plaintiff Barrera leave to add the 4 new proposed named plaintiffs:

- (1) "Relation back independently fails as to the four proposed plaintiffs" as to their PAGA claim (ROA #86 [Opp.], p. 10);
- (2) The new plaintiffs' PAGA claim falls under a different PAGA regime than Barrera's PAGA claim, given PAGA's reform in 2024; therefore, all 5 plaintiffs do not share a common PAGA claim, and they are misjoined (*id.* at pp. 12-14);
- (3) The new plaintiffs' PAGA notices fail the "facts and theories" requirement of Labor Code section 2699.3(a)(1)(A) (*id.* at pp. 11-12);
- (4) The new plaintiffs lack reformed-PAGA standing because of deficiencies with their allegations in the FAC (*id.* at p. 13);
- (5) The new plaintiffs signed an arbitration agreement (*id.* at pp. 14-15), and those arbitration agreements contain class waivers (*id.* at pp. 15-17); and
- (6) Defendant will be substantially prejudiced by the addition of 4 new plaintiffs and their claims, including their PAGA claim, as this will require extensive new discovery and motion practice (*id.* at p. 17).

The Court finds Defendant's **argument #1** to be inapposite. Although argument #1 is directed at the 4 new plaintiffs, it appears under the heading "Barrera's Individual PAGA Claim Is Time-Barred and Does Not Relate Back." (*Id.* at pp. 9-11.) Defendant's entire argument on the 4 new plaintiffs is as follows:

Relation back independently fails as to the four proposed plaintiffs. There is no relation back where a new plaintiff seeks to enforce an independent right that is, a different claim than the one alleged in the original complaint. Under that rule, "where the additional party plaintiff, joining in a suit brought before the statute of limitations

has run against the original plaintiff, seeks to enforce an independent right, the amended pleading does not relate back, so as to render substitution permissible ....” *Diliberti v. Stage Call Corp.* (1992) 4 Cal.App.4th 1468, 1471, quoting *Bartalo v. Superior Court* (1975) 51 Cal.App.3d 526, 533. The proposed plaintiffs worked at four different facilities over periods spanning 2013 to 2026 and gave notice under a different statutory regime; theirs are independent claims, not Barrera’s injury. And an amendment adding a new PAGA plaintiff is permissible only where that plaintiff independently satisfies PAGA’s prerequisites — standing, notice, and the statute of limitations. *Hargrove v. Legacy Healthcare, Inc.* (2022) 80 Cal.App.5th 782, 791.

For context, the full quote from *Diliberti* that Defendant references in its opposition is as follows: “The general rule governing the permissibility of the bringing in of additional plaintiffs after the period of the statute of limitations has elapsed is that where the additional party plaintiff, joining in a suit brought before the statute of limitations has run against the original plaintiff, seeks to enforce an independent right, the amended pleading does not relate back, so as to render substitution permissible.” (*Diliberti, supra*, 4 Cal.App.4th at p. 1471, internal quotes & ellipses omitted.)

Thus, the quoted rule from *Diliberti* applies when the statute of limitations has expired for a new plaintiff but not for the original plaintiff. Here, the situation is *opposite*: As discussed above, as to the PAGA claim, the statute of limitations has expired as to Barrera, the original plaintiff—but it has not expired as to the new plaintiffs, whose employment with Defendant all ended in August 2025 to January 2026, and they all timely gave their PAGA claim notices to LWDA in 2025 to 2026 *and* sought to file their PAGA claim in a court action within one year of the end of their employment with Defendant. Therefore, the 4 new plaintiffs need not rely on the “relation back” doctrine to allege timely PAGA claims. Accordingly, Defendant’s argument that “[r]elation back fails independently as to the four proposed plaintiffs” is inapposite.

As part of this relation-back argument, Defendant also cites *Hargrove*, which involved an original PAGA plaintiff who passed away and a motion for leave to amend the complaint to substitute a new PAGA plaintiff who began working for the defendant-employer only after the original complaint was filed. (*Hargrove, supra*, 80 Cal.App.5th at p. 785.) The court held that the new plaintiff did not have standing to substitute in because she was not an aggrieved employee at the time the original plaintiff gave notice to the LWDA. (*Id.* at pp. 791-792.)

Defendant cites *Hargrove* in support of the proposition that “an amendment adding a new PAGA plaintiff is permissible only where that plaintiff independently satisfies PAGA’s prerequisites — standing, notice, and the statute of limitations.” (Opp., p. 11.) This proposition is not controversial, and as noted above, since the 4 new plaintiffs all ended their employment with Defendant within one year of giving notice to the LWDA *and* seeking to assert their PAGA claim in this court action by way

of filing this motion for leave to amend, the 4 new plaintiffs all seem to independently satisfy PAGA’s prerequisites. Plaintiff has not made any argument thus far that they need not satisfy these prerequisites or that any particular plaintiff is entitled to assert claims for which that plaintiff does not meet PAGA’s prerequisites. Therefore, the Court finds Defendant’s argument #1 to be inapposite.

As for Defendant’s **argument #2** that joining the new plaintiffs’ PAGA claims with Barrera’s PAGA claim in this case would result in different PAGA claims spanning different PAGA regimes (pre- and post-2024) (Opp., pp. 12-13), that argument is moot because, as explained above, the Court denies the instant motion to the extent it seeks to add a PAGA claim by Barrera.

Defendant’s **arguments #3 and #4** both contend that there are deficiencies with the new plaintiffs’ allegations. Argument #3 relates to the plaintiffs’ LWDA notices, and argument #4 relate to the allegations of the FAC. These are both merits-based arguments that would be better addressed in other appropriate proceedings after the FAC has been filed, particularly since further amendments may cure the alleged deficiencies. (See *Atkinson, supra*, 109 Cal.App.4th at p. 760, citing *Kittredge, supra*, 123 Cal.App.3d at p. 1048.)

Defendants’ **argument #5** based on alleged arbitration agreements is better addressed in other appropriate proceedings as well, such as a motion to compel arbitration.

As for **argument #6** on Defendant’s alleged prejudice, this argument is supported by a single sentence in defense counsel’s declaration: “Based on the procedural history above, the proposed amendment — adding four plaintiffs who worked at different facilities during different time periods, together with a representative PAGA claim — would require KWK to reopen and substantially expand discovery, including additional plaintiff depositions, facility-specific records, and PAGA-wide data, and to defend penalty exposure under two different PAGA statutory regimes.” (ROA #86 [Smith Decl.], ¶ 9.) Ultimately, this argument amounts to little more than Defendant must defend against claims asserted against it, which does not justify denial of leave to amend. (See *S.C. v. Doe I* (2025) 115 Cal.App.5th 365, 384, fn. 11 [rejecting defendant’s argument that granting motion for leave to file amended complaint would require defendant to “spend additional resources and time investigating the new time period” when defendant already “spent a considerable amount of time and resources investigating” the time period alleged in the original complaint, noting that the court is “not convinced the burden of additional costs would justify denial given a trial court’s authority to fashion orders alleviating such concerns].)

Therefore, the Court **GRANTS** the instant motion for leave to amend **to the extent the FAC proposes to add the 4 new plaintiffs and their claims.**

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|     |                                                                          | <p>Plaintiff is <b>ORDERED</b> to file and serve a revised proposed FAC omitting Plaintiff Barrera’s PAGA claim. The revised proposed FAC must be filed within 3 court days of this ruling and served on Defendant within 30 days of this ruling.</p> <p>Plaintiff shall give notice.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| 105 | <p><b>Vu vs. Pure Nails And Hair LLC</b></p> <p><b>2025-01498773</b></p> | <p><b>1.Motion for Leave to Amend/Demurrer</b></p> <p><b>2. Case Management Conference</b></p> <p>The motion technically on calendar is Defendants Pure Nails and Hair, LLC; Meridian Spa and Salon, LLC; Crest Spa and Salon, Inc.; Pure Nail Bar, LLC; and Recherchela, LLC’s motion for leave to amend its demurrer. This motion is <b>GRANTED</b>, and the amended demurrer is deemed timely filed on 3/25/2026.</p> <p><i>The Court also rules as follows on the substance of the amended demurrer:</i></p> <p>Defendants Pure Nails and Hair, LLC; Meridian Spa and Salon, LLC; Crest Spa and Salon, Inc.; Pure Nail Bar, LLC; and Recherchela, LLC’s demurrer to Plaintiff Thuy Vu’s complaint is <b>OVERRULED</b>. (Code Civ. Proc. [CCP], § 430.10, subds. (e), (f).)</p> <p>Defendants shall file and serve their answers, if any, within 14 days.</p> <p><b>Legal Standard</b></p> <p>On a demurrer, a complaint “must be liberally construed, with a view to substantial justice between the parties.” (CCP § 452; <i>see also Redfearn v. Trader Joe’s Co.</i> (2018) 20 Cal.App.5th 989, 996.)</p> <p>“A demurrer tests the legal sufficiency of the factual allegations in a complaint.” (<i>Redfearn v. Trader Joe’s Co.</i> (2018) 20 Cal.App.5th 989, 996.) The court must determine “whether the complaint alleges facts sufficient to state a cause of action or discloses a complete defense.” (<i>Ibid.</i>) The court assumes “the truth of the properly pleaded factual allegations, facts that reasonably can be inferred from those expressly pleaded[,] and matters of which judicial notice has been taken.” (<i>Ibid.</i>)</p> <p>All properly pleaded material facts, and reasonable inferences, must be accepted as true. (<i>Thomas v. Regents of University of Cal.</i> (2023) 97 Cal.App.5th 587, 611.) “As a general rule in testing a pleading against a demurrer[,] the facts alleged in the pleading are deemed to be true, however improbable they may be,” unless the “complaint contains</p> |

allegations of fact inconsistent with attached documents, or allegations contrary to facts which are judicially noticed.” (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604; *Dodd v. Citizens Bank of Costa Mesa* (1990) 222 Cal.App.3d 1624, 1627 [giving “precedence” to exhibits attached to the complaint if it contradicts the language of the complaint].)

“Questions of fact . . . cannot be decided on demurrer.” (*Berryman v. Merit Property Management, Inc.* (2007) 152 Cal.App.4th 1544, 1556.) Because a demurrer tests only the legal sufficiency of the complaint, “[a] court will not consider facts that have not been alleged in the complaint unless they may be reasonably inferred from the matters alleged in the complaint or are proper subjects of judicial notice.” (*Hall v. Great West Bank* (1991) 231 Cal.App.3d 713, 718, fn. 7.)

A complaint “ordinarily is sufficient if it alleges ultimate rather than evidentiary facts,” as “a plaintiff is required only to set forth the essential facts with particularity sufficient to acquaint a defendant with the nature, source, and extent of the plaintiff’s cause of action.” (*Thomas, supra*, 97 Cal.App.5th at pp. 610-611, internal quotes & citations omitted.) “A complaint will be upheld ‘so long as the pleading gives notice of the issues sufficient to enable preparation of a defense.’” (*Id.* at p. 611.)

Moreover, “less specificity is required in pleading matters of which the defendant has superior knowledge,” including “a defendant’s knowledge or notice or intent.” (*Ibid.*, internal quotes omitted.) “The particularity required in pleading facts depends on the extent to which the defendant in fairness needs detailed information that can be conveniently provided by the plaintiff; less particularity is required where the defendant may be assumed to have knowledge of the facts equal to that possessed by the plaintiff.” (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) “There is no need to require specificity in the pleadings because ‘modern discovery procedures necessarily affect the amount of detail that should be required in a pleading.’” (*Ibid.*)

Moreover, a demurrer must dispose of an *entire* cause of action to be sustained. (See *Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 38-39 [complaint will survive demurrer if factual allegations state a cause of action under any legal theory]; *PH II, Inc. v. Super. Ct.* (1995) 33 Cal.App.4th 1680, 1683 [only a motion to strike, not a demurrer, can attack a portion of a cause of action].)

### **PAGA Representation**

First, Defendants contend that Plaintiff does not state facts sufficient to establish she is a proper PAGA representative. (ROA #95 at Exh. 4 [Dem. P&A], p. 5.) In essence, Defendants contend:

Plaintiff utilizes a prior and (now) incorrect standard for who qualifies as an “aggrieved employee.” Plaintiff states she “is an ‘aggrieved employee’ under the PAGA as she was employed by

Defendants...and suffered one or more of the Labor Code violations alleged herein.” Complaint, ¶ 25. With the passing of AB 2288 on June 19, 2024 (effective immediately), CLC § 2699(c)(1) was amended to define an “aggrieved employee” as one who “personally suffered each of the violations during the period prescribed” by statute, in addition (as previously) to being “employed by the alleged violator” during that period. (emphasis added).

(*Id.*)

While this “one or more” allegation is an accurate quote from ¶ 25 of the complaint, elsewhere in the complaint—including within each cause of action—Plaintiff explicitly alleges that Plaintiff *and* Aggrieved Employees all suffered each of the underlying violations for which the complaint seeks PAGA penalties. (ROA #2 [Compl.], ¶¶ 2-7, 9, 14, 28-85.) Therefore, this argument has no merit.

Defendants’ contrary argument—that “Plaintiff and the Aggrieved Employees” should be read in the disjunctive, and that paragraph 25 be treated as an admission that Plaintiff suffered only some of the violations—asks the Court to construe the pleading *against* the pleader and to draw an inference in Defendants’ favor. A demurrer does not permit that. At most, the phrasing creates an internal inconsistency, which is resolved in Plaintiff’s favor at this stage; and because a demurrer must dispose of an *entire* cause of action, an introductory paragraph’s “one or more” language does not defeat any of the seven causes of action, each of which alleges that Plaintiff suffered the violation at issue.

Defendants’ further assertion that Plaintiff was a salaried supervisor who did not personally experience the hourly-employee violations depends on a fact that appears nowhere in the complaint and is contrary to its allegations. The Court cannot consider it on demurrer, which is confined to the face of the pleading and matters subject to judicial notice. Whether Plaintiff actually suffered each violation is a factual dispute reserved for a later evidentiary stage.

Defendants also point out that in ¶ 73, Plaintiff alleges that “[a]dditionally, at all relevant times, Defendants failed to pay all mandated sick wages owed to the Aggrieved Employees at the proper rate of pay.” (Dem. P&A at p. 6, quoting Compl. ¶ 73.) Even if this allegation did not inadvertently omit the words “Plaintiff and” before “Aggrieved Employees,” Defendants’ demurrer would fail as to the 6th cause of action under which ¶ 73 appears because other allegations are sufficient to support this cause of action for PAGA penalties, and a demurrer must dispose of an entire cause of action.

Defendants also contend:

Plaintiff gives us no grounds to compare how the different Defendants treated her, or how she was treated in relation to those she claims to represent, to even begin analysis under Sec. 2699.

The Complaint, as mentioned, does not tell us what jobs Plaintiffs did for any Defendant. Plaintiff does not assert anything that substantively describes the other employers individually or as a group, other than to define them as: “all current and former nonexempt employees employed by Defendants in California within the last one year and 65 days.” Compl., ¶ 1. And all of Defendants’ complained of conduct is said to be visited uniformly on all Plaintiffs. *Id.*, ¶¶ 1, 4-11, 25, 29-30, 36, 38, 45, 49-51, 54, 59, 62, 67, 72, 76, 79, 81, 83.

. . . Either purposefully or through neglect, Plaintiff abstracts the allegations to such a level—by treating her and the Aggrieved Employees as a monolithic unit—that proving her adequacy as a representative is impossible.

(Dem. P&A at p. 6.) This argument also lacks merit and logical sense because, fairly read and as Defendants even acknowledge, the point is that the complaint alleges that all 5 employers treated Plaintiff and Aggrieved Employees “uniformly” in the same way with respect to all the alleged violations, regardless of job duties or job titles. At the pleading stage, these allegations of ultimate facts are sufficient and the Court must accept them as true, and Defendants cite no authority to the contrary.

Defendants further contend that amended section 2699, subdivision (c)(1)’s “employed by the alleged violator” requirement compels Plaintiff to plead entity-specific facts tying each of the five Defendants to her employment, and that collective “Defendants” allegations are insufficient. The governing pleading standard is to the contrary. A complaint is sufficient if it alleges ultimate rather than evidentiary facts, and “less particularity is required” where “the defendant has superior knowledge of the facts”—a doctrine that applies with particular force here, where the facts of common ownership, centralized control of labor relations, and unity of interest lie peculiarly within the affiliated entities’ possession. (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 549-550.) The wage-order definition of “employer” is, moreover, phrased in the alternative precisely to reach situations in which multiple entities control different aspects of the employment relationship. (*Martinez v. Combs* (2010) 49 Cal.4th 35, 64, 76.) The complaint alleges that each of the five Defendants was Plaintiff’s employer and pleads joint-employer and integrated-enterprise ultimate facts—joint direction and control, a common scheme, unity of interest and ownership, common management, centralized control of labor operations, and shared offices and website. (Compl., ¶¶ 15-19, 21-22.) That suffices at the pleading stage.

The authorities Defendants add in reply do not require more. *Henderson v. Equilon Enterprises, LLC* (2019) 40 Cal.App.5th 1111 was decided on summary judgment upon an undisputed evidentiary record showing that the third-party operator alone controlled wages, hours, and working conditions (*id.* at pp. 1114, 1116-1117, 1121); it says nothing about what must be *pleaded* to survive a demurrer. And *Amezcu v. Superior Court* (2026) 120 Cal.App.5th 116 holds only that Code of Civil Procedure section 473 does not authorize an award of attorney fees as a condition of

granting leave to amend; the court did not adjudicate the sufficiency of any joint-employer pleading. Neither supports sustaining this demurrer.

### **Uncertainty**

Defendants also demur to complaint as uncertain under CCP section 430.10, subdivision (f).

Uncertainty is a disfavored ground for demurrers because “ambiguities can be clarified under modern discovery procedures.” (*Khoury v. Maly’s of Cal., Inc.* (1993) 14 Cal.App.4th 612, 616.) Demurrers for uncertainty should be “granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond.” (*A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 695, internal quotes omitted.) Moreover, a demurrer for uncertainty must “specify in what particulars the complaint was uncertain.” (*Fenton v. Groveland Community Services Dist.* (1982) 135 Cal.App.3d 797, 809.)

Also, a “demurrer for uncertainty will not lie where the ambiguous facts alleged are presumptively within the knowledge of the demurring party.” (*Bacon v. Wahrhaftig* (1950) 97 Cal.App.2d 599, 605, quoting *Merlino v. West Coast Macaroni Mfg. Co.* (1949) 90 Cal.App.2d 106, 108.)

Defendants initially explain their “uncertainty” argument as follows:

The question of whether a defendant is a real party in interest, in this instance, an actual employer of the plaintiff, is a threshold question that must be dealt with before the merits are reached and discovery allowed. Because of her purposefully vague and high-level assertions that do not even attempt to explain the relationship or potential distinctions between these actual companies, Plaintiff utterly fails to establish that all five Defendants are “employers” within the definition of the CLC. This is a fatal defect even at the pleading stage.

(Dem. P&A at p. 6.) In short, Defendants contend that Plaintiff has failed to sufficiently allege that all 5 Defendants are Plaintiff’s employers.

But Defendants’ cited authorities do not support Defendants’ contention:

- *Rocha v. U-Haul Co. of California* (2023) 88 Cal.App.5th 65 held, in relevant part, that a PAGA claim may not be alleged against a defendant because an arbitrator had already found that the defendant committed no underlying Labor Code violations, and that finding had preclusive effect as against that defendant. (*Id.* at p. 69.) Here, there is no prior arbitration ruling entitled to preclusive effect. Therefore, *Rocha* is inapposite. Accordingly, it also does not help Defendants here to cite to *Adolph v. Uber Technologies, Inc.* (2023) 14 Cal.5th 1104, in which the court cited to *Rocha* for this uncontroversial “manner of proceeding” when there is an arbitration ruling that precedes further litigation in court.



- *Martinez v. Combs* (201) 49 Cal.4th 35 dealt with the question of whether certain defendants could be sued as plaintiff's "employers." (*Id.* at pp. 49-51.) But this issue arose in the context of employees, who were seasonal agricultural workers, suing *the produce merchants through whom their direct employer sold the produce*; thus, a legal question arose as to whether the direct employer's customers, in essence, could also constitute the plaintiffs' "employers" under applicable labor laws. (*Id.* at pp. 42-43.) There was no question in *Marinez* whether plaintiffs could sue *their direct employer*. (See *id.* at pp. 48-49.) Here, Plaintiff alleges all 5 Defendants were her *direct employers*; Plaintiff is not seeking to impose employer liability on *Defendants' customers*. Therefore, *Martinez* is also inapposite.
- For similar reasons, *Goonewardene v. ADP, LLC* (2019) 6 Cal.5th 817 is also inapposite, as it dealt with the issue of "whether, when an employer hires an independent payroll service provider (hereafter payroll company) to take over all the payroll tasks that would otherwise be performed by an internal payroll department, the employee may bring a civil action against not only his or her employer but against the payroll company as well." (*Id.* at p. 820.) Here, again, Plaintiff is seeking to sue her *direct employers*, not a third-party contractor of her direct employers.
- Likewise, *Reynolds v. Bement* (2005) 36 Cal.4th 1075, which involved the issue of whether corporate officers of plaintiff's employer may also be held personally liable as plaintiff's "employers," is equally inapposite, as Plaintiff is not suing any corporate officers here.

Here, Plaintiff alleges that all 5 Defendants directly employed her. (See Compl., ¶¶ 2, 14.) Plaintiff also alleges that Plaintiff "worked under the joint direction and control of Defendants"; Defendants "carried out a joint scheme, business plan or policy in all respect pertinent hereto"; and "a unity of interest and ownership between each Defendant exists such that all Defendants acted as a single employer of Plaintiff. . . ." (*Id.* at ¶ 21.) In addition, Plaintiff has also alleged that "Defendants, and each of them, are an integrated enterprise and should be treated as a single employer because these entities share an interrelation of operations, with common human resources and personnel policies and shared common offices and facilities. Additionally, Defendants also have a shared website, common management, a centralized control of labor operations, and common ownership or financial control." (*Id.* at ¶ 22.)

As the Court held in ruling on Defendants' similar motion for judgment on the pleadings in the related class action brought by Plaintiff against the same Defendants (i.e., *Vu v. Pure Nails and Hair LLC*, Case No. 2025-01488744 ["*Vu Class Action*"], which has been consolidated with the

instant case for pretrial purposes), these allegations are sufficient to state that Defendants were Plaintiff's joint direct employers.

At bottom, Defendants' argument is essentially that Plaintiff needs to allege "more specific" facts to support her joint-employer theories of liability. (Dem. P&A at p. 2; see also *id.* at p. 7 ["Without *at all* defining Defendants' various role or relative degree of involvement in any of the alleged conduct, Plaintiff's Complaint reads as a series of baldly stated alleged wage violations that are fatally ambiguous, unclear, and without basic factual specifics; it is ripe for a special demurrer for vagueness and uncertainty, and by extension a general demurrer for failure to state a valid claim. The allegations appear to have been lifted from some generic complaint, with no attempt to tailor them to this case. This violates basic principles of pleading."].)

However, as the Court explained in its ruling on Defendants' motion for judgment on the pleadings in the *Vu* Class Action:

However, a complaint "ordinarily is sufficient if it alleges ultimate rather than evidentiary facts," as "a plaintiff is required only to set forth the essential facts with particularity sufficient to acquaint a defendant with the nature, source, and extent of the plaintiff's cause of action." (*Thomas v. Regents of University of Cal.* (2023) 97 Cal.App.5th 587, 610-611, internal quotes & citations omitted.) "A complaint will be upheld 'so long as the pleading gives notice of the issues sufficient to enable preparation of a defense.'" (*Id.* at p. 611.)

Moreover, "less specificity is required in pleading matters of which the defendant has superior knowledge." (*Ibid.*, internal quotes omitted.) "The particularity required in pleading facts depends on the extent to which the defendant in fairness needs detailed information that can be conveniently provided by the plaintiff; less particularity is required where the defendant may be assumed to have knowledge of the facts equal to that possessed by the plaintiff." (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) "There is no need to require specificity in the pleadings because 'modern discovery procedures necessarily affect the amount of detail that should be required in a pleading.'" (*Ibid.*)

Plaintiff has alleged sufficient ultimate facts to support her joint-employer theories, and she is not required to allege more specific evidentiary facts under California state's pleading standards. Plaintiff's allegations are sufficient to put Defendants on notice of the nature, source, and extent of Plaintiff's claims. Plaintiff's allegations that Defendants "share an interrelation of operations, with common human resources and personnel policies and shared common offices and facilities," as well as allegations that "Defendants also have a shared website, common management, a centralized control of labor operations, and common ownership or financial control," are sufficiently specific under California state's pleading standards.

Defendants’ demurrer also included similar arguments aimed at specific causes of action. None of these arguments are persuasive either.

As to the 1st cause of action for PAGA penalties resulting from failure to pay minimum wages, Defendants contend:

To support her first one for the purported failure to pay minimum wages, Plaintiff baldly asserts that, “[Plaintiffs] were not provided proper minimum and regular wages due to the allegations herein.” Compl., ¶ 30. But what work was done by whom to earn such wages, or when, during regular hours or overtime, and for whom, goes unstated. The Complaint simply says Plaintiff and her nonexempt coworkers “were required to perform off-the-clock work” that Defendants knew or should have known about. *Id.*

(Dem. P&A at p. 8.) While Defendants acknowledge (*id.* at pp. 8-9) that the complaint at ¶ 3 also alleges that “[f]or example, Defendants frequently required Plaintiff and the Aggrieved employees to perform pre- and post-shift work without recording such time – leading to unpaid wages – such as picking up salon supplies and personally delivering cash to Defendants’ owners,” Defendants nevertheless contend this factual allegation is insufficient for the following reasons:

But Plaintiff cannot escape having to catalog actual unpaid or underpaid work (to show measurable damages) simply by giving an “example” and without telling Defendants anything about this purported conduct: who was told to perform these tasks, when, by whom, how long did they take, were these isolated requests, and what other “off-the-clock” work were Plaintiffs directed to do but not paid for? Without any further discussion of circumstances or known facts that might support this allegation, Plaintiff simply states that “Defendants violated California Labor Code laws and minimum wage laws.” *Id.*, ¶.31.

(Dem. P&A at p. 9.)

Defendants make a similar contention that Plaintiff is required to plead “the who, what, where, and how much . . . Plaintiffs respective accrued” to support Plaintiff’s 2nd cause of action based on failure to pay overtime wages. (*Id.*) Defendants also make similar arguments on the 3rd through 7th causes of action, sometimes acknowledging but also sometimes ignoring specific factual examples support the alleged violations contained in the complaint. (*Id.* at pp. 10-12; see also Compl. at ¶¶ 6-8.)

Yet Defendants also cite zero California state case law imposing such heightened pleading standards, which are only required as to fraud claims. (see, e.g., *Tenet Healthsystem Desert, Inc. v. Blue Cross of Cal.* (2016) 245 Cal.App.4th 821, 837-838, italics original [fraud claims subject to “particularity requirement [which] necessitates pleading facts which ‘show how, when, where, to whom, and by what means the representations were tendered’”].)

In short, while Defendants characterize these arguments as based on “uncertainty,” the complaint is simply not so incomprehensible that Defendants cannot reasonably respond. Defendants essentially dispute that all 5 of them engaged in such conduct, but that does not mean the complaint is uncertain.

Finally, also under the general heading of “uncertainty,” Defendants contend that Plaintiff’s PAGA claims for Defendants’ violations of Labor Code sections 201-203 (6th cause of action) and Labor Code section 226 (7th cause of action) fail because Plaintiff did not allege Defendants’ violations were willful, knowing, or intentional or willful. (Dem. P&A at pp. 12-13 & fn. 2 [acknowledging that the willfulness requirement of Section 203 and the knowing and intentional requirement of Section 226 are substantively the same, citing *Naranjo v. Spectrum Security Services, Inc.* (2024) 15 Cal.5th 1056, 1079-1080.)

On the 6th cause of action, Defendants contend that “nowhere does [Plaintiff] allege the actual conduct supporting her Sixth . . . COA[ was] intentional.” (*Id.* at p. 13.) This argument is ironic, especially in light of Defendants’ arguments about the alleged deficiencies of Plaintiff’s other allegations where Plaintiff used some of the words found in statutory language. Here, Plaintiff does not simply parrot Section 203’s language by using the term “willfully”; instead, Plaintiff alleges that “at all times material to this action, Defendants had a planned pattern and practice of failing to timely pay Plaintiff and the Aggrieved Employees all wages due and owing upon separation of employment as required by Labor Code §§ 201 and 202.” (Compl., ¶ 76.) It can be reasonably inferred that if Defendants “planned” a pattern and practice, Defendants willfully, knowingly, and/or intentionally engaged in the alleged violations. Thus, this allegation is sufficient.

On the 7th cause of action, Plaintiffs correctly contend that “a plaintiff seeking civil penalties under PAGA for a violation of section 226(a) does not have to satisfy the ‘injury’ and ‘knowing and intentional’ requirements of section 226(e)(1).” (*Lopez v. Friant & Associates, LLC* (2017) 15 Cal.App.5th 773, 788; see also *Kim v. Reins International Cal., Inc.* (2020) 9 Cal.5th 73, 86.) Therefore, Plaintiff’s failure to allege that Defendants’ violation of Section 226 was knowing and intentional does not defeat Plaintiff’s 7th cause of action for PAGA penalties based on Defendants’ alleged violation of Section 226.

Defendants’ final citation to legal authority in its demurrer is telling (Dem. P&A at p. 13, citing *Jacobs v. Sustainability Partners, LLC* (N.D. Cal. Sept. 18, 2020, No. 20-cv-01981-PJH) 2020 WL 5593200, at \*12): It demonstrates the ultimate problem with Defendants’ demurrer—that Defendants seek to apply stricter federal court pleading standards, even though the instant case is governed by California state’s traditional notice pleading standards. (See *Thomas, supra*, 97 Cal.App.5th at p. 618, fn. 2.)

Plaintiff shall give notice.

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| <p><b>106</b></p> | <p><b>Vu vs. Pure Nails and Hair LLC</b></p> <p><b>2025-01488744</b></p> | <p><b>1.Motion for Protective Order</b></p> <p><b>2. Case Management Conference</b></p> <p><b>The motion is GRANTED IN PART and DENIED IN PART.</b> The Court declines to limit first-phase discovery to Defendant Pure Nails and Hair LLC alone. Instead, under Code of Civil Procedure section 2019.020, subdivision (b), the Court sequences discovery: Plaintiff may take first-phase discovery from all five Defendants directed at the threshold single-integrated-enterprise and joint-employer questions, but issuance of <i>Belaire-West</i> notices to, and disclosure of contact information for, the non-managerial employees of the four Defendants other than Pure Nails and Hair LLC is deferred pending further evaluation of the joint-employer/integrated-enterprise discovery.</p> <p>I. Background</p> <p>Plaintiff Thuy Vu brings this putative wage-and-hour class action against five affiliated salon and spa entities — Pure Nails and Hair LLC, Meridian Spa and Salon, LLC, Crest Spa and Salon, Inc., Pure Nail Bar LLC, and Recherchela LLC — alleging that all five were her employers under direct-employer, joint-employer, and integrated-enterprise theories. The Court denied Defendants' motion for judgment on the pleadings on February 5, 2026, finding Plaintiff's allegations sufficient to allege that she was jointly employed by Defendants. Following an Informal Discovery Conference on March 6, 2026, at which no agreement was reached, the Court permitted Defendants to refile a motion for protective order, which is now before the Court. The parties have agreed in principle to the use of a <i>Belaire-West</i> opt-out notice before any employee contact information is produced.</p> <p>II. The Parties' Positions</p> <p><b>Defendants.</b> Defendants seek an order "bifurcat[ing]" discovery so that the first phase is limited to Pure Nails — the one entity they concede employed Plaintiff — with discovery of the other four Defendants deferred unless and until evidence of a joint enterprise or joint employer emerges. In reply, Defendants frame the relief not as a denial of discovery but as a "common-sense and fair sequencing" authorized by Code of Civil Procedure section 2019.020, subdivision (b), which they contend <i>Williams v. Superior Court</i> (2017) 3 Cal.5th 531 expressly preserved. They argue that whether the four other entities employed Plaintiff is a disputed threshold "real party in interest" question (see <i>Hutcheson v. Superior Court</i> (2022) 74 Cal.App.5th 932, 939) that a court may manage through sequencing, and that first-phase discovery of Pure Nails' own management and employees will reach the very facts bearing on joint employment — common ownership, shared human-resources and personnel policies, centralized control, and employee pooling. Invoking the <i>Parris/CVS</i> balancing framework, Defendants contend that exposing four separate corporate entities and their entire workforces to discovery and unsolicited contact, based on an unproven joint-employer theory, is the kind of "fishing expedition" those cases guard against. They add that if first-phase</p> |
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discovery yields evidence of joint control, Plaintiff may move to compel or modify the order to reach the remaining Defendants.

**Plaintiff.** Plaintiff opposes, characterizing the motion as an improper "merits challenge" barred by *Williams* — an attempt to force an evidentiary showing as a condition of discovery, which puts "the cart before the horse." She asserts a due-process right to conduct pre-certification class discovery (citing *Carabini* and *Atari*) and argues that class-member contact information is routinely discoverable (citing *Pioneer Electronics*, *Belaire-West*, *Puerto*, and *Crab Addison*). Most pointedly, Plaintiff argues that Pure Nails-only discovery "would provide no information as to the Joint Defendants" and would force the Court to accept Defendants' self-serving assertions of separateness; the questions central to her theory — whether a common owner set the policies and controlled the wages, hours, and working conditions across all locations, and whether employees of one entity were required to work for another — can be answered only through discovery directed at the other Defendants. She contends this is not a "headless" class action because the Court has already found she is a member of the class she seeks to represent, distinguishing *CVS*.

**Plaintiff's evidentiary objection.** Plaintiff separately objects that Defendants' reply misstated the discovery record — asserting she had produced "zero documents" and "virtually no substantive response" — when she had produced 1,573 pages and substantive responses to Defendants' interrogatories, requests for admission, and requests for production on July 23, 2026; Defendants' counsel acknowledged "overlook[ing]" the production but did not correct the reply. The Court addresses the objection only to note that the sequencing question turns on the structure of discovery, not on the parties' competing characterizations of each other's diligence; the Court does not rely on Defendants' characterization of Plaintiff's production.

### III. Legal Standard

Discovery methods ordinarily "may be used in any sequence," and one party's discovery "shall not operate to delay the discovery of any other party." (Code Civ. Proc., § 2019.020, subd. (a).) But "on motion and for good cause shown, the court may establish the sequence and timing of discovery for the convenience of parties and witnesses and in the interests of justice." (*Id.*, subd. (b).) The Supreme Court has confirmed that a court may alter the normal timing of discovery in the exercise of its broad discretionary powers, though it "should not do so without good reason." (*Rosemont v. Superior Court* (1964) 60 Cal.2d 709, 713–714.)

Defendants are correct that *Williams* did not forbid sequencing. *Williams* addressed a trial court's refusal to compel statewide employee contact information until the plaintiff first proved the merits of his claim; because the defendant there never filed a section 2019.020 motion, the Court had "no occasion to decide what showing might suffice to warrant a court order sequencing discovery." (*Williams v. Superior Court*, *supra*, 3 Cal.5th at p. 551.) At the same time, *Williams* reaffirmed the substantive limit that governs this motion: "to require a party to supply proof of any claims or

defenses as a condition of discovery in support of those claims or defenses is to place the cart before the horse." (*Id.* at p. 551.) The burden of justifying a limit on discovery rests on the party resisting it — here, the moving Defendants. (*Id.* at p. 541.)

The controlling gloss on sequencing in the class context is *Coriell v. Superior Court* (1974) 39 Cal.App.3d 487. *Coriell* holds that a protective order deferring liability discovery until issues of class worthiness are resolved "is appropriate" and would be "immune from attack" — but only so long as the order does not also bar discovery that is itself relevant to the threshold class-worthiness question. (*Id.* at p. 493.) The defendant bears the burden and cannot shift it to the plaintiff through a deferral order. (*Ibid.*) Finally, because first-phase discovery implicates the privacy of nonparty employees, the Court applies the *Parris* balancing test, weighing the potential for abuse of the class-action procedure against the rights and interests of the parties and absent class members. (*Parris v. Superior Court* (2003) 109 Cal.App.4th 285, 296–300; *CVS Pharmacy, Inc. v. Superior Court* (2015) 241 Cal.App.4th 300, 306.) Employee contact information is ordinarily discoverable subject to a *Belaire-West* opt-out notice. (*Williams v. Superior Court, supra*, 3 Cal.5th at pp. 538, 543–544.)

#### IV. Analysis

**A. The sequence Defendants propose — Pure Nails only — is not permissible.** Defendants' premise is that first-phase discovery confined to Pure Nails will nonetheless reveal whether the four other entities are joint employers. But the facts that establish joint employment and integrated enterprise reside primarily with the other four entities, not with Pure Nails. Whether an entity is an employer turns on its control over wages, hours, or working conditions, and the wage-order definition is framed in the alternative precisely to reach situations in which multiple entities control different aspects of the employment relationship. (*Martinez v. Combs* (2010) 49 Cal.4th 35, 64.) The integrated-enterprise inquiry likewise turns on interrelation of operations, common management, centralized control of labor relations, and common ownership or financial control — proof of which ordinarily comes from the affiliated entities' own ownership records, personnel systems, payroll practices, and management structure. (*Mathews v. Happy Valley Conference Center, Inc.* (2019) 43 Cal.App.5th 236, 248; see *Castaneda v. Ensign Group, Inc.* (2014) 229 Cal.App.4th 1015, 1024–1025.)

Confining first-phase discovery to Pure Nails would withhold precisely the discovery relevant to the threshold issue Defendants say should be decided first. That is the defect *Coriell* identifies: a sequencing order may defer merits and liability discovery, but it cannot be used to bar discovery relevant to the threshold class-worthiness (here, employer-identity) question. (*Coriell v. Superior Court, supra*, 39 Cal.App.3d at p. 493.) And because Defendants' proposal would require Plaintiff to produce evidence of joint employment — drawn from Pure Nails alone — before obtaining discovery from the entities that actually possess that evidence, it conditions discovery on a merits showing in the manner *Williams* disapproved. (*Williams v. Superior Court, supra*, 3 Cal.5th at p. 551.) To the extent the motion rests on Defendants' unproven proffer that Pure Nails

was Plaintiff's sole employer, that proffer cannot carry Defendants' burden or be assumed in order to curtail discovery. (*Coriell v. Superior Court*, *supra*, 39 Cal.App.3d at p. 493.)

**B. But sequencing focused on the threshold issue is warranted.** It does not follow that Plaintiff is entitled to immediate, unstructured discovery against all five Defendants and their entire workforces. Section 2019.020, subdivision (b), permits a tailored order, and there is good cause to focus the first phase on the dispositive threshold question — whether the five Defendants are a single integrated enterprise or joint employers — before opening the full range of employee-directed class and merits discovery as to the four Defendants other than Pure Nails. That focus serves the convenience of the parties and witnesses and the interests of justice: it develops the very issue on which the propriety of broader discovery depends, while deferring the most intrusive and burdensome discovery until the Court can determine whether the four other entities belong in class-wide, employee-level discovery at all. This is the phasing *Coriell* approves. (*Coriell v. Superior Court*, *supra*, 39 Cal.App.3d at p. 493.)

**C. Deferring *Belaire-West* notice and contact-information disclosure for the four other Defendants' employees is an appropriate, tailored protection.** The one genuinely privacy-sensitive step Defendants identify is the disclosure of, and opt-out outreach to, the rank-and-file employees of the four entities Plaintiff arguably never worked at. Under *Parris* and *CVS*, the Court must weigh the potential for abuse of the class device against the interests of those absent employees. (*Parris v. Superior Court*, *supra*, 109 Cal.App.4th at pp. 296–300; *CVS Pharmacy, Inc. v. Superior Court*, *supra*, 241 Cal.App.4th at p. 306.) Where, as here, the representative link between Plaintiff and the four other entities' workforces is itself the disputed and as-yet-unproven question, the balance supports deferring the disclosure of those employees' contact information and the issuance of *Belaire-West* notices to them until the joint-employer/integrated-enterprise issue fully explored. That limited deferral is not a categorical bar to discoverable contact information — the information remains discoverable, subject to a *Belaire-West* opt-out, if and when the threshold issue is resolved in Plaintiff's favor (*Williams v. Superior Court*, *supra*, 3 Cal.5th at pp. 543–544) — and it leaves untouched the contact information and *Belaire-West* process for Pure Nails' employees, whose employer status is undisputed. This calibrated sequence honors the discretion *Williams* preserved while withholding only the discovery that would inflict the nonparty-privacy and burden harms *Parris* and *CVS* caution against, and only until the predicate for that discovery is established.

Defendants to provide notice.



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| <p><b>107</b></p> | <p><b>Arevalo vs. National Signal LLC</b></p> <p><b>2024-01382811</b></p> | <p><b>1.Motion for Preliminary Approval re Class/PAGA Settlement</b></p> <p><b>2. Order to Show Cause re: Monetary Sanctions</b></p> <p><b>1. Motion for Preliminary Approval of Class and PAGA Settlement</b></p> <p>The Court has reviewed the supplemental materials provided by Class Counsel and finds that they adequately address the previously identified issues. Accordingly, Plaintiffs Jaime Oswaldo Arevalo and Hector Alonso Velasquez’s Motion for Preliminary Approval of Class Action and PAGA Settlement is <b>GRANTED</b>.</p> <p>This is a putative wage-and-hour class action and PAGA matter. On 2/27/2024, Plaintiffs Jaime Oswaldo Arevalo and Hector Alonso Velasquez, individually and on behalf of all others similarly situated, filed a class action complaint against Defendants National Signal LLC and H&amp;S Beam LLC. (ROA #2.) The operative complaint is the first amended complaint (FAC), filed on 5/14/2024, which alleges various Labor Code wage-and-hour violations and unfair business practices, including a claim for PAGA penalties.</p> <p>On 6/18/2025, Plaintiffs filed the instant motion for preliminary approval of the class action and PAGA settlement and submitted the Joint Stipulation of Class Action and Private Attorneys General Act Settlement and Release (“Settlement Agreement”) and Class Notice for the Court’s review. The Motion seeks preliminary approval of the parties’ proposed settlement for the gross settlement amount (GSA) of \$460,000.</p> <p>On 11/6/2025, the Court continued the first hearing on the motion and asked Class Counsel to address various issues. (ROA #45.) Counsel then submitted supplemental materials, including a revised version of the Joint Stipulation of Class Action and Private Attorneys General Act Settlement and Release (“Amended Settlement”) and an amended Class Notice.</p> <p>Based on a review of all papers submitted, including the Amended Settlement Agreement, the Court finds the settlement falls within the range of what is considered fair and reasonable, subject to a final determination at the Final Approval hearing.</p> <p><b>Within five (5) court days, Class Counsel must provide a further revised Proposed Order with the following revisions:</b></p> <ol style="list-style-type: none"> <li>1. The revised proposed order submitted at ROA #65 is missing the attached revised Class Notice. The further revised proposed order should attach the revised and approved Class Notice.</li> <li>2. In ¶ 1, the ROA number listed for counsel’s supplemental declaration is incorrect—the correct ROA number is 67, not 66. Also, the citation provided for counsel’s supplemental declaration references ROA #35, which was actually counsel’s <i>original</i>, not</li> </ol> |
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|            |                                                                   | <p><i>supplemental</i>, declaration. This is confusing because there is no explanation for why the original declaration is being cited.</p> <p><b>The Motion for Final Approval will be heard on 1/7/2027 at 2:00 p.m. in Department CX102.</b> All papers for the Motion for Final Approval must be filed and served no later than sixteen (16) court days before the hearing date. If Class Counsel cannot meet this deadline, then they must request a continuance of the hearing. Failure to do so may result in the issuance of an Order to Show Cause re Monetary Sanctions.</p> <p>At the Final Approval hearing, evidence supporting the request for an award of attorneys' fees should be presented in the form of time records or a summary of time spent on the substantive tasks, so as to enable the Court to evaluate the lodestar and costs claimed. Class Counsel should state by declaration whether time records were kept and created contemporaneously or otherwise. The Court also reminds Class Counsel that although a determination regarding the amount of the attorneys' fees award will not be made until final approval, the Court is unlikely to approve attorneys' fees in excess of thirty percent (30%) of the GSA absent unique circumstances. As a result, Class Counsel should address whether any such unique circumstances exist.</p> <p>Additionally, at the Final Approval hearing, each Plaintiff and Class Counsel must provide detailed declarations describing circumstances to justify the requested enhancement award and addressing the factors set forth in <i>Golba v. Dick's Sporting Goods, Inc.</i> (2015) 238 Cal.App.4th 1251, 1272, and <i>Clark v. American Residential Services, LLC</i> (2009) 175 Cal.App.4th 785, 804. Each Plaintiff must provide an estimate of the hours spent participating in this litigation.</p> <p>Plaintiffs to give notice of this Court's ruling, including to the LWDA, within five (5) court days, and file proof of service.</p> <p><b>2. OSC re Monetary Sanctions Against Class Counsel</b></p> <p>The Court is awaiting a declaration explaining counsel's failure to comply with the Court's 11/6/2025 order.</p> |
| <b>108</b> | <p><b>Higgins vs. Spigen Inc.</b></p> <p><b>2024-01376537</b></p> | <p><b>Motion for Approval of PAGA Settlement</b></p> <p>The court has reviewed and considered the papers filed in support of plaintiff's motion for approval of a \$190,000 PAGA settlement. The court has the following questions and comments:</p> <ol style="list-style-type: none"> <li>1. Was plaintiff's untimely declaration (ROA 98, 100) submitted to the LWDA? Plaintiff must file with the court an actual proof of service identifying the specific document(s) served on the LWDA, when plaintiff served the document(s), and how service was effected.</li> </ol> <p><u>As to the settlement:</u></p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |

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|  |  | <ol style="list-style-type: none"> <li>2. Plaintiff should provide the estimated high, low, and average individual awards for aggrieved employees.</li> <li>3. The escalator provision (§ 8) provides two options. Prior to approval, the parties must determine (1) whether the escalator provision has been triggered, (2) the final gross settlement amount, and (3) the final PAGA Period.</li> <li>4. The “Released Parties” provision (§ 1.27) is vague and/or overbroad. It includes unrelated, ambiguous and/or unidentified third parties which should be removed, including “insurers, reinsurers, risk groups,” “contractors,” “and/or affiliated companies, and managing agents; and any and all agents, legal representatives, and/or attorneys, in their representative or individual capacity.”</li> <li>5. Plaintiff’s counsel must disclose whether counsel has any fee-splitting arrangement with any other counsel, including the exact percentages, or confirm none exists.</li> <li>6. Consistent with the settlement (§ 6.1), all parties must state, in declarations filed with the court, whether they are aware of any class, representative or other collective action in any other court that asserts claims similar to those asserted in this case. If any such actions are known to exist, the declarations shall state the name and case number of any such case and the procedural status of that case, and describe the impact of the proposed settlement on that case.</li> <li>7. Plaintiff’s counsel seeks attorneys’ fees totaling 1/3 of the gross settlement amount. Absent unique circumstances, the court is unlikely to approve an attorneys’ fees award that exceeds 30% of the gross settlement amount. Plaintiff’s counsel should address in the supplemental filing whether any such unique circumstances exist here.</li> <li>8. Plaintiff seeks an enhancement award of \$10,000. The court is unlikely to approve an enhancement award in light of plaintiff’s substantial individual settlement. Plaintiff should address in the supplemental filing whether unique circumstances justify additional compensation here.</li> <li>9. Plaintiff’s counsel seeks \$17,476.07 in costs. Plaintiff’s counsel should submit invoices supporting the mediation and expert costs.</li> <li>10. Unclaimed funds are sent to the State Controller after 120 days. §§ 4.4.1, 4.4.3. This should be at least 180 days.</li> </ol> <p><u>As to the notice:</u></p> <ol style="list-style-type: none"> <li>11. The notice letter should be revised consistent with the above.</li> </ol> |
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|  |  | <p>12. Does the notice need to be prepared in languages other than English?</p> <p>13. Explain the statutory allocation to the LWDA and to aggrieved employees.</p> <p>14. Inform aggrieved employees they will not be retaliated against for cashing their check.</p> <p>15. The same issues above apply re: the released parties and 120 day check cancellation.</p> <p>16. Provide contact information for the administrator and counsel.</p> <p>17. Inform aggrieved employees when the court entered judgment and how they may obtain a copy and other case documents.</p> <p><u>As to the proposed order:</u></p> <p>18. The proposed order and judgment should be revised consistent with the above.</p> <p>19. Remove the attorney information from the caption page.</p> <p>20. Add page and paragraph numbers.</p> <p>21. Identify and attach the settlement, any amendments, and the notice (including any translations) as exhibits.</p> <p>22. In the fourth paragraph on page 1, include placeholders for the actual amounts the court will award upon approval.</p> <p>23. Remove the third paragraph on page 2.</p> <p>24. Remove the first sentence in the fourth paragraph on page 2.</p> <p>25. Add a paragraph stating “The court orders the parties and the Settlement Administrator to administer the settlement in accordance with the terms of the Settlement Agreement.”</p> <p>26. Include a paragraph with a realistic date for a final accounting hearing. The court conducts final accounting hearings on Thursdays at 2:00 p.m. The proposed order and judgment shall state that counsel shall submit a final administrator’s report at least 16 court days before the hearing addressing the status of the settlement administration, including the actual amounts paid to the aggrieved employees and the other amounts fully and finally distributed under the settlement, including any uncashed checks.</p> <p>The hearing on plaintiff’s motion for approval is continued to <b>October 22, 2026, at 2:00 p.m. in Department CX102</b> to permit the parties to address and respond to the above issues. A supplemental brief shall be filed at least 16 court days before the hearing and shall address as necessary each of the above points. The parties must provide redlined versions of all revised</p> |
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|     |                                                                             | <p>documents (e.g., revised settlement agreement, revised notice, revised proposed order) and any settlement provisions revised via amendment.</p> <p>Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| 109 | <p><b>Renteria vs. TTS Engineering Inc,</b></p> <p><b>2024-01442426</b></p> | <p><b>Motion for Approval of PAGA Settlement</b></p> <p>The Court has reviewed the supplemental materials provided by Plaintiff’s Counsel and finds that they adequately address the previously identified issues. Accordingly, Plaintiff Edgardo Campos’s Motion for Approval of PAGA Settlement is <b>GRANTED</b>.</p> <p>On 11/26/2024, Plaintiffs Francisco Renteria and Edgardo Campos, individually and on behalf of all others similarly situated, filed a class action complaint against Defendant TTS Engineering, Inc. (ROA #2.)</p> <p>The operative complaint is the first amended complaint, filed on 1/30/2025, which added a PAGA cause of action and alleged a total of 9 causes of action, as follows:</p> <ol style="list-style-type: none"> <li>1. Failure to Pay Minimum Wages [Cal. Lab. Code §§ 204, 1194, 1194.2, and 1197];</li> <li>2. Failure to Pay Overtime Compensation [Cal. Lab. Code §§ 1194 and 1198];</li> <li>3. Failure to Provide Meal Periods [Cal. Lab. Code §§ 226.7, 512];</li> <li>4. Failure to Authorize and Permit Rest Breaks [Cal. Lab. Code §§ 226.7];</li> <li>5. Failure to Indemnify Necessary Business Expenses [Cal. Lab. Code § 2802];</li> <li>6. Failure to Timely Pay Final Wages at Termination [Cal. Lab. Code §§ 201-203];</li> <li>7. Failure to Provide Accurate Itemized Wage Statements [Cal. Lab. Code § 226];</li> <li>8. Unfair Business Practices [Cal. Bus. &amp; Prof. Code §§ 17200, et seq.]; and</li> <li>9. Civil Penalties Under PAGA [Cal. Lab. Code § 2699, et seq.].</li> </ol> <p>(ROA #15.)</p> <p>On 2/21/2025, the Court entered an order on the parties’ stipulation, (1) dismissing Plaintiffs’ class allegations without prejudice, (2) submitting Plaintiffs’ individual claims—including their individual PAGA claims—to</p> |

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|  |  | <p>binding arbitration, and (3) staying this action pending the conclusion of the arbitration. (ROA #26.)</p> <p>On 12/9/2025, Plaintiff Campos filed the instant Motion for Approval of PAGA Settlement and submitted for the Court’s review the PAGA Settlement Agreement. The motion seeks approval of the parties’ proposed settlement of Plaintiff’s PAGA claims for the non-reversionary gross settlement amount (GSA) of \$125,000.</p> <p>On 4/6/2026, the Court continued the first hearing on the Motion and asked Plaintiff’s Counsel to address various issues. (ROA #44.) Counsel submitted supplemental materials, but the Court identified additional issues for counsel to address, so on 6/25/2026, the Court continued the second hearing on the Motion. (ROA #50.) Counsel then submitted additional materials, including a fully executed Addendum to PAGA Settlement Agreement (collectively with original settlement agreement, “Settlement Agreement”) and an amended notice/cover letter to aggrieved employees that will accompany the payment to them. (See ROA #59.)</p> <p>The settlement includes the claims of 127 PAGA Aggrieved Employees, defined as “all non-exempt employees who worked for Defendant in California at any time during the PAGA Period.” The PAGA Period is 11/25/2023 through 9/14/2025 (not through 9/28/2025), after the escalator clause in the Settlement Agreement was triggered and Defendant elected to end the PAGA release period on 9/14/2025 (see ROA #48, ¶ 3).</p> <p>Based on a review of all submissions made in support of the Motion, the Court finds the settlement is fair, adequate, and reasonable.</p> <p>The Court previously concluded that an attorneys’ fee award totaling \$37,500 or 30% of the GSA, constituting a 0.75 multiplier of counsel’s estimated lodestar amount, is fair, adequate, and reasonable for a settlement of this size, including considering the action’s contingent nature and the results achieved.</p> <p>The Court also previously concluded that a PAGA General Release Fee of \$7,500 to Plaintiff Campos is fair, adequate, and reasonable for a settlement of this size, given Plaintiff Campos’s broader release compared to the aggrieved employees’ release and given Plaintiff Campos’s representative service in this case which is not separately being compensated.</p> <p>Accordingly, the Court approves the following specific awards and disbursements from the GSA:</p> <ul style="list-style-type: none"> <li>• Attorneys’ fees totaling \$37,500.00 awarded to Plaintiff’s counsel;</li> <li>• Litigation costs totaling \$24,084.90 awarded to Plaintiff’s counsel;</li> <li>• Settlement administration costs of \$3,750.00 awarded to Phoenix Class Action Administration; and</li> <li>• PAGA General Release Fee of \$7,500.00 awarded to Plaintiff Edgardo Campos.</li> </ul> |
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|            |                                                                                    | <p>PAGA penalties in the amount of \$52,165.10 shall be allocated as follows: sixty-five percent (65%), or \$33,907.32, payable to the Labor and Workforce Development Agency (LWDA); and thirty-five percent (35%), or \$18,257.78, payable to the Aggrieved Employees in accordance with the terms of the Settlement Agreement.</p> <p>Final Accounting is set for 5/20/2027, at 2:00 p.m. in Department CX102. Counsel shall submit the final report of the settlement administrator regarding the status of the settlement administration no later than sixteen (16) court days prior to the hearing. The final report must include all information necessary for the Court to determine the total amount of the settlement funds actually paid to the Aggrieved Employees and all others in accordance with the Settlement, as well as the amount of unclaimed funds, if any, remitted to the State Controller's Unclaimed Property Fund/the cy pre recipient. If the settlement funds are not completely disbursed by the report deadline, counsel must request a continuance. Failure to do so may result in the issuance of an Order to Show Cause re Monetary Sanctions.</p> <p>Plaintiff to give notice of this ruling, including to the LWDA, within five (5) court days, and file proof of service.</p>                                                                                                                                                                                                                                              |
| <b>110</b> | <p><b>Balt USA, LLC vs. Treadstone Medical LLC</b></p> <p><b>2021-01237081</b></p> | <p><b>1. Ex Parte re. continuing trial &amp; toll 5-year rule</b></p> <p><b>2. Status Conference</b></p> <p><b>1. Disposition</b></p> <p>Plaintiff Balt USA, LLC's motion to continue trial and to extend the five-year deadline is GRANTED. The Court continues the trial to Monday, April 26, 2027, and finds, for the reasons stated below, that the five-year period within which this action must be brought to trial under Code of Civil Procedure section 583.310 is extended so that a trial commencing on that date is timely. The Court sets the pretrial critical-path deadlines specified in Part 5.</p> <p><b>2. Procedural Posture; the Ex Parte Objection Is Overruled</b></p> <p>Balt initially sought this relief by ex parte application. At the hearing on that application the Court declined to grant relief on an emergency basis, but rather than deny the request it ordered the ex parte application to stand as the moving papers and set an expedited briefing schedule so that the continuance and five-year questions could be decided as a noticed motion on a developed record. (Notice re Matters Set at Aug. 20, 2026 Hearing (ROA 2134).) Defendants filed a full opposition on August 27, 2026, Balt filed its reply on September 1, 2026, and the matter was heard September 3, 2026.</p> <p>Defendants renew their contention that the relief is procedurally improper because it was first presented ex parte and on shortened notice. (Defs.' Opp. (ROA 2188).) That objection is overruled. The Court did not decide</p> |

the merits ex parte; it converted the application into moving papers and afforded Defendants a full and fair opportunity to be heard through a complete opposition brief, a supporting declaration, and oral argument. California Rules of Court, rule 3.1332(b), expressly permits a continuance request to be made "by a noticed motion or an ex parte application," and the process the Court ordered satisfied every purpose of the notice rules. Balt likewise included a notice of motion in its papers. (Reply (ROA 2212).)

Defendants identify no prejudice traceable to the procedure as opposed to the substance, and their own proposed summary-judgment and discovery schedule contemplated comparably compressed briefing. The Court also declines to treat the motion as a barred motion for reconsideration under Code of Civil Procedure section 1008: the July 30 amendment adding the trade secret claims, the parties' post-amendment conduct, and the newly surfaced discovery record are materially different circumstances. The motion is properly before the Court and is decided on its merits.

### **3. Legal Standard**

**Continuance.** Although continuances are disfavored and the Court may grant one only on an affirmative showing of good cause, good cause expressly includes the addition of a new claim or party where the parties have not had a reasonable opportunity to conduct discovery and prepare for trial, a party's excused inability to obtain material evidence despite diligent efforts, and a significant, unanticipated change leaving the case not ready for trial. (Cal. Rules of Court, rule 3.1332(c).)

**Five-year rule.** An action must be brought to trial within five years after it is commenced. (Code Civ. Proc., § 583.310.) The requirement is mandatory, and dismissal follows if it is not met, "except as expressly provided by statute." (Code Civ. Proc., § 583.360, subd. (b).) The governing exception here is section 583.340(c): the Court must exclude the time during which "[b]ringing the action to trial, for any other reason, was impossible, impracticable, or futile." (Code Civ. Proc., § 583.340, subd. (c).)

The trial court determines impossibility, impracticability, or futility "in light of all the circumstances in the individual case, including the acts and conduct of the parties and the nature of the proceedings themselves," with reasonable diligence the critical factor; the plaintiff must show a circumstance of impracticability, a causal connection to the inability to move the case to trial, and reasonable diligence at all stages. (Bruns v. E-Commerce Exchange, Inc. (2011) 51 Cal.4th 717, 730–731.) The plaintiff bears the burden, and the standard asks whether trial was impracticable "due to causes beyond [the plaintiff's] control." (Id. at p. 731.)

Impracticability is not equated with strict impossibility; it reaches "excessive and unreasonable difficulty or expense" measured on the practical circumstances of the case. (Brunzell Constr. Co. v. Wagner



(1970) 2 Cal.3d 545, 551–552.) The purpose of the statute is to prevent avoidable delay, "not . . . arbitrarily to close the proceeding at all events in five years." (Moran v. Superior Court (1983) 35 Cal.3d 229, 237–238.) Its tolling provisions are liberally construed consistent with the policy favoring trial on the merits. (Seto v. Szeto (2022) 86 Cal.App.5th 76, 85.)

#### **4. Analysis**

##### **A. Good Cause Supports a Continuance**

The Court granted Balt leave to add trade secret claims by the Fourth Amended Complaint on July 30, 2026, less than five months before the December 7, 2026 trial date. (4th Am. Compl., filed July 31, 2026.) The addition of those claims is a significant, recent change in the shape of the case, and neither side has had a reasonable opportunity to complete fact and expert discovery on them within the current schedule. That alone is good cause under California Rules of Court, rule 3.1332(c)(5) and (c)(7).

The record confirms the case is not ready for trial for reasons independent of any single dispute:

First, trade secret discovery is gated on a designation dispute set for September 11, 2026. Before commencing trade-secret discovery, Balt must identify its trade secrets with reasonable particularity. (Code Civ. Proc., § 2019.210.) Sonorous has moved for a protective order and to strike Balt's Amended section 2019.210 disclosure, contending it does not meet that standard. (Sonorous Mot. for Protective Order & to Strike (ROA 2182).) Until that motion is resolved, discovery directed to the trade secrets cannot meaningfully proceed. The Court expresses no view on the merits of Sonorous's motion; its pendency is itself a practical obstacle to readiness.

Second, discovery disputes remain pending before the Referee that exist regardless of the trade secret claims. The parties' August 31, 2026 joint status report reflects that roughly 115 repositories within the scope of the Forensic Neutral's review had not been provided, and that the parties remain at impasse over the sufficiency of Defendants' showings — a dispute rooted in the pre-existing document-production process, not the new claims. (Joint Status Report re Outstanding Repositories (ROA 2210).) The volume of production already exchanged — on the order of 817,844 documents and 3,380,062 pages — underscores that meaningful review and follow-up discovery cannot be compressed into the weeks now remaining. (Defs.' Opp. (ROA 2188).)

Third, percipient and expert discovery on the case as a whole is incomplete, and Defendants' own proposal contemplates production of additional non-privileged materials as late as September 8, 2026. (Defs.' Opp. (ROA 2188).)

The rule 3.1332(d) factors do not counsel otherwise. Defendants' principal asserted prejudice is financial and scheduling. The Court takes seriously the conflict presented by Mr. Ferrera's federal criminal trial set for May 4,

2027 (Defs.' Opp. (ROA 2188); Weber Decl. (ROA 2205)), and accounts for it below by setting trial to commence in April 2027 rather than later, consistent with Defendants' own suggestion that March 2027 could work. The interests of justice favor deciding these substantial claims on the merits rather than defaulting to dismissal by operation of the calendar.

### **B. The Five-Year Period Is Extended**

Two independent, cumulative grounds extend the five-year period beyond the current December 17, 2026 date.

**The 78-day settlement/futility period.** The time during which a settlement agreement is in effect tolls the five-year period, because bringing an action to trial when the parties have resolved their dispute would be futile. (*Seto v. Szeto*, supra, 86 Cal.App.5th at p. 87.) The parties treated this case as settled from June 4, 2025 until the settlement fell through and the case was returned to the trial track on August 21, 2025 — a period of 78 days. Defendants do not dispute that this period is excluded, and concede it moves the deadline from December 17, 2026 to approximately March 5, 2027. (Defs.' Opp. (ROA 2188); Reply (ROA 2212).)

**The impracticability of completing discovery on the trade secret claims.** Independently, the Court finds under section 583.340(c) that bringing this action to trial has been rendered impracticable by causes beyond Balt's reasonable control from July 30, 2026 forward. The trade secret claims were added only after documents bearing Balt's asserted trade secrets were produced in late May 2026; the discovery necessary to try those claims cannot begin until the section 2019.210 designation dispute is resolved on September 11, 2026; substantial repository and forensic-production disputes remain before the Referee; and Defendants are entitled to move for summary judgment on the new claims, which must be heard no later than 30 days before trial. Balt has prosecuted the case with reasonable diligence — including extensive motion practice to compel production — and the obstacles to readiness are not of its making. (*Bruns v. E-Commerce Exchange, Inc.*, supra, 51 Cal.4th at pp. 730–731.) These are precisely the "excessive and unreasonable difficulty" circumstances the impracticability exception addresses. (*Brunzell Constr. Co. v. Wagner*, supra, 2 Cal.3d at pp. 551–552.)

The extension to April 26, 2027 rests on the two grounds acting together. The 78-day settlement exclusion, standing alone, moves the deadline only to on or about March 5, 2027 — a date that precedes the continued trial date — so that exclusion by itself would not render an April 26, 2027 trial timely. The section 583.340(c) impracticability exclusion is therefore necessary: excluding the period from July 30, 2026 forward through the current trial date (a conservative measure), together with the 78-day settlement period, extends the deadline to on or about July 23, 2027 (Reply (ROA 2212)), and an April 26, 2027 trial falls comfortably within that period.

*The Court need not fix that outer date with precision. It adopts the extension as necessary to permit completion of percipient and expert discovery — in the case generally and on the trade secret claims in particular — and to accommodate the statutory summary-judgment track described below.*

## 5. The Critical Path and Resulting Trial Date

The Court sets the new trial date by working forward from the assumptions the parties' filings make realistic, and backward from Defendants' statutory right to move for summary judgment. Each increment is tied to a concrete legal or practical requirement.

| Step | Event                                                                                                                      | Date                                                                   | Basis                                                                                                                                                                   |
|------|----------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1    | Trade secret designation dispute resolved (Sonorous section 2019.210 motion, heard 9/11/26)                                | On or about Sept. 30, 2026                                             | Trade-secret discovery cannot commence until the trade secret is identified with reasonable particularity. (Code Civ. Proc., § 2019.210.)                               |
| 2    | Fact and expert discovery window — 60 days for each side                                                                   | Close on or about Nov. 30, 2026                                        | Reasonable opportunity to complete percipient and expert discovery on all claims, including the new ones.                                                               |
| 3    | Summary-judgment motion served and heard (≈115-day window: not less than 81 days' notice plus the 30-day pre-trial buffer) | Served by on or about Jan. 5, 2027; heard by on or about Mar. 27, 2027 | A summary-judgment motion must be served at least 81 days before the hearing and heard no later than 30 days before trial. (Code Civ. Proc., § 437c, subd. (a)(2)–(3).) |
| 4    | Additional 30 days from summary-judgment hearing to trial                                                                  | To trial                                                               | The 30-day pre-trial hearing deadline. (Code Civ. Proc., § 437c, subd. (a)(3).)                                                                                         |

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|  |  | <p>The Court acknowledges that the exact figures involve judgment: the discovery period and the placement of the summary-judgment motion could reasonably shift by days or a few weeks. The critical path is intended to guarantee that Defendants retain their statutory right to a summary-judgment motion on the trade secret claims heard no later than 30 days before trial (Code Civ. Proc., § 437c, subd. (a)(3)), while giving both sides a genuine 60-day window to complete percipient and expert discovery once the designation dispute is resolved. Setting trial in late April 2027 also keeps the civil trial ahead of Mr. Ferrera's May 4, 2027 federal criminal trial to the extent practicable.</p> <p style="text-align: center;"><b>6. Order</b></p> <ol style="list-style-type: none"> <li>1. The motion to continue trial is GRANTED. <b>Trial is continued from December 7, 2026, to April 26, 2027.</b></li> <li>2. The Court finds under Code of Civil Procedure section 583.340(c) that bringing this action to trial was impracticable, for causes beyond Balt's reasonable control, during the period beginning July 30, 2026, and further finds the 78-day settlement period (June 4–August 21, 2025) excluded as futile. (Seto v. Szeto, supra, 86 Cal.App.5th at p. 87.) The five-year period under Code of Civil Procedure section 583.310 is extended accordingly, such that a trial commencing April 26, 2027 is timely; the mandatory dismissal provisions of Code of Civil Procedure section 583.360 do not require dismissal.</li> <li>3. The following pretrial deadlines are set (subject to adjustment for good cause): <ol style="list-style-type: none"> <li>a. Trade secret designation issues to be resolved on or about September 30, 2026;</li> <li>b. Fact and expert discovery cutoff: November 30, 2026;</li> <li>c. Deadline to serve any motion for summary judgment or adjudication: on or before January 5, 2027, to be heard no later than March 27, 2027; and</li> <li>d. <b>The Pretrial Conference is set for April 9, 2027, at 10AM.</b></li> <li>e. All other pretrial and pretrial-conference deadlines to be reset by reference to the April 26, 2027 trial date under the Code of Civil Procedure and this Court's local rules.</li> </ol> </li> </ol> |       |                |                                                                         |

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|  |  | 4. The parties shall meet and confer and submit a proposed amended scheduling order conforming to this ruling within 10 court days. |
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